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ROMAN CATHOLIC ARCHBISHOP OF AGANA,
A CORPORATION SOLE

IN THE DISTRICT COURT OF GUAM, TERRITORY OF GUAM

PAUL JOSEPH BORJA,

Plaintiff,

vs.

ROMAN CATHOLIC ARCHBISHOP OF
AGANA, a Corporation Sole, DOE
ENTITIES 1-5; and DOE INDIVIDUALS 6-
50, inclusive,

Defendants.

CIVIL ACTION NO. 17-00017

**DEFENDANT THE ROMAN CATHOLIC
ARCHDIOCESE OF AGANA'S
MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
MOTION TO DISMISS**

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1 **I. INTRODUCTION**

2 On September 12, 2016, the Guam legislature passed Bill No. 326-33 (COR) relating to
3 the statute of limitations for civil child sexual abuse claims. On September 23, 2016, the
4 Governor signed Bill No. 326-33 (COR) into law as Guam Pub. L. No. 33-187. The bill is now
5 codified at 7 G.C.A. § 11301.1 (hereinafter, “the 2016 Bill”). Since the passage of the 2016 Bill,
6 twenty-five sex abuse lawsuits (“the Lawsuits”) asserting vicarious liability and negligent
7 hiring/supervision claims dating from between thirty to sixty years ago have been filed against
8 the Roman Catholic Archdiocese of Agana (“the Archdiocese”) in this Court. The plaintiffs
9 assert that the 2016 Bill revives these long-expired claims against the Archdiocese. It does not.
10

11 *First*, read plainly and in light of its legislative history, the 2016 Bill does not revive
12 expired claims against third parties such as the Archdiocese. It does attempt to revive expired
13 claims as to alleged perpetrators. It also eliminates limitations periods for future claims. And, as
14 to future claims, the legislature acted broadly – sweeping away limitations periods against all
15 parties, perpetrator and third party alike, and removing barriers to suit that had been imposed by
16 previous statute of limitations legislation in 2011. But, as both the language of the 2016 Bill and
17 the legislature’s rejection of specific draft revival language make clear, the legislature declined to
18 revive expired claims against non-perpetrator third parties.
19

20 *Second*, assuming arguendo that the 2016 Bill could be interpreted to revive time-barred
21 claims (it cannot), attempts at revival of time-barred claims, interfere with rights guaranteed by
22 Guam statutory law and due process. 2 G.C.A. § 2105 prohibits the legislature from making
23 laws that affect rights accrued or accruing to the citizens of Guam For many decades, an
24 absolute defense to Plaintiff’s claims has existed and Section 2105 effectively converted that
25 defense into a right (vested or otherwise) that cannot be removed without running afoul of
26
27
28

1 Section 2105. Moreover, while retroactive laws do not violate due process in all instances, the
2 Constitution is offended where, as here, a revival statute could open third parties to claims dating
3 back decades or more, long after the abuser him or herself has passed away, and after evidence
4 and memories have been lost to time. The Archdiocese’s interpretation of the 2016 Bill as
5 reviving claims against abusers only is the only one that avoids this constitutional problem.
6

7 Insofar as the Lawsuits assert long-expired claims against a third party, the 2016 Bill
8 does not afford relief. All claims against the Archdiocese must be dismissed.

9 **II. RELEVANT LEGISLATIVE HISTORY**

10 The legislative history of the 2016 Bill is intertwined with and explicitly based on two
11 2011 bills that also addressed statutes of limitation for child sexual abuse claims.
12

13 **A. The 2011 Bills – The Legislature Chose Not To Revive Expired Claims 14 Against Third Parties**

15 On January 18, 2011, Senator Benjamin J.F. Cruz introduced Bill No. 33-31 (COR) (“Bill
16 33”) and Bill No. 34-31 (COR) (“Bill 34”). Bill 33 addressed criminal prosecutions and
17 eliminated the criminal statute of limitations for crimes of child sexual abuse for all acts
18 committed by alleged perpetrators after the date of enactment – it did not revive time-barred sex
19 abuse crimes. Request for Judicial Notice in Support of Motion to Dismiss (“RJN”), **Ex. A** (Bill
20 33-31, original draft).¹ Bill 34 addressed civil actions and created a two-year revival window for
21 certain claims of child sexual abuse. RJN, **Ex. B** (Bill 34-31, original draft).²
22

23 The original draft of Bill 34 – the civil statute – purported to revive actions against *both*
24 perpetrators and any third-party employers on a showing of gross negligence by the employer.

25 ¹ The Court may consider judicially noticeable documents in the context of this motion to dismiss under
26 Fed. R. Civ. P. 12(b)(6). Tellabs, Inc. v. Makor Issues & Rights, Ltd., 551 U.S. 308, 322 (2007).

27 ² For the sake of completeness, a copy of the Committee Report for Bill No. 33-31 and Bill No. 34-31 are
28 **Exhibits C** and **D** to the Archdiocese’s Request for Judicial Notice.

1 Id. at 2 (stating that damages may be recovered from the “institution, agency, firm, business,
2 corporation, or other public or private legal entity” employing the abuser). A later version of the
3 bill deleted the employer-related revival language, however, stating in pertinent part:

4 [F]or a period of two (2) years following the effective date of this Act, victims of
5 child sexual abuse that occurred on Guam who have been barred from filing suit
6 against their abusers by virtue of the expiration of the civil statute of limitations
7 shall be permitted to file those claims in the Guam Superior Court.

8 Id.; see also RJN, **Ex. E** (floor amendments to Bill 34)

9 It was this later version that became law. RJN, **Ex. F**, at 4 (Guam Pub. L. No. 31-07).³
10 The Legislative Findings and Intent published with Bill 34 emphasized that Bill 34 was aimed at
11 claims against alleged perpetrators only, not third parties. See Id. at 3-4 (in statement of
12 legislative intent and findings, explaining that for some victims of child sexual abuse “the *abuser*
13 was a parent, stepparent, or relative, a member of the clergy, a teacher or other trusted adult” and
14 that the expiration of the statute of limitations “has allowed many child sexual *abusers* to escape
15 civil liability”) (emphasis added).
16

17 **B. The 2016 Bill Removed All Limitations Periods and Litigation Barriers**
18 **Prospectively, But Revived Only Perpetrator Claims Retroactively**

19 On May 23, 2016, Senator Frank F. Blas introduced the first draft of what was to become
20 the 2016 Bill, (introduced as Bill 326-33). RJN, **Ex. G**, at 55-57 (Committee Report on Bill 326-
21 33). The language of this first draft of Bill 326-33 contained two subsections. Subsection (a)
22 proposed removing the previously enacted two-year statute of limitations for a number of civil
23

24 ³ The final version of Bill 34 (signed into law as Public Law 31-07) also created barriers to suit by
25 requiring would-be plaintiffs to obtain “certificates of merit” regarding their sexual abuse allegations
26 from mental health professionals (RJN, **Ex. F** at 5-8; 7 G.C.A. § 11306.1) before filing suit, and subjected
27 plaintiffs to the risk of paying the defendant’s attorney’s fees if the defendant prevailed in the action. Id.
28 at 4-5 (later codified at 7 G.C.A. §§ 11306(c), 11306.1(g)).

1 actions, including sexual abuse lawsuits. Id. at 56. Subsection (b) proposed removing the
2 limitation of the two-year revival window created by Bill 34 (see above). Id. at 57. As
3 originally drafted, the 2016 Bill (like Bill 34) revived the statute of limitations only as to actions
4 against perpetrators.

5
6 The legislature held hearings on the first draft on June 27, 2016. Id. at 6. At the hearing,
7 the Committee received written and oral testimony from former Senator Robert Klitzkie. Id. at
8 20-21, 93-97. Senator Klitzkie proposed new language whose explicit purpose was to “provide
9 relief to those who have suffered at the hands of child sexual abusers to include not only the
10 abusers but also **their enablers, aiders or abettors, those acting in concert with them and**
11 **their religious institutions or corporations sole.”** Id. at 93 (emphasis in original). Senator
12 Klitzkie proposed providing that broad relief through a two-part statute, with the first part
13 (subsection (a)) eliminating the statute of limitations prospectively (*i.e.*, for all claims arising
14 after the date of passage) and the other part (subsection (b)) reviving expired claims, *i.e.*,
15 reopening claims retroactively. Id. (stating that the statute should be “eliminated prospectively
16 and reopened retroactively”). In both subsection (a) (the prospective prong) and subsection (b)
17 (the retroactive prong), Senator Klitzkie proposed language that would allow a plaintiff to bring
18 an action against not only the perpetrators of the sexual abuse, but also “their enablers their
19 aiders or abettors, those acting in concert with them and their institutions[.]” Id. at 95.⁴ Senator
20
21
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23 ⁴ Senator Klitzkie’s proposed language read:

24 (a) An action for child sexual abuse may be commenced against abusers, their enablers,
25 their aiders or abettors, those acting in concert with them and their religious institutions
or corporations sole at any time.

26 (b) Victims of child sexual abuse that occurred on Guam who have been barred from
27 filing suit an action [sic] against their abusers, their enablers their aiders or abettors, those
acting in concert with them those acting in concert with them [sic] and their religious
28

1 Klitzkie stated his argument for extending the revival of claims to third parties such as
2 institutions as follows: “if cover ups, conspiracies, etcetera have occurred, we need to find out,
3 and the only way that’s gonna happened [sic] is if you open the statute of limitations for the past
4 – not only for the abuser but for the conspirators, the aiders, the abettors, and the institution
5 itself.” Id. at 21.⁵
6

7 In July 2016, Senator Blas proposed a new version of Bill 326-33 (“the Substituted Bill”)
8 that adopted (nearly verbatim) the language regarding application to third parties that Senator
9 Klitzkie had proposed⁶:

10 § 11301.1 No Limit for Child Sexual Abuse. (a) An action for child sexual
11 abuse may be commenced against abusers, their enablers, their aiders or abettors,
12 those acting in concert with them and their institutions at any time.

13 (b) Victims of child sexual abuse that occurred on Guam who have been
14 barred from filing an action against their abusers, their enablers their aiders or
15 abettors, those acting in concert with them and their institutions by virtue of the
16 expiration of the civil statute of limitations *shall* be permitted to file those claims
17 in any court of competent jurisdiction.

18 Id. at 59:23-60:05.

19 A hearing on the Substituted Bill was held on July 28, 2016. Id. at 39. The July 28, 2016
20 hearing was continued to August 1, 2016, to allow additional witnesses to testify. Id. at 48.

21 But, on September 12, 2016, the legislature passed a different version of Bill 326-33
22 (“the Final Bill”) from the Substituted Bill proposed by Senator Blas. RJN, **Ex. H.** The Final

23 institutions or corporations sole by virtue of the expiration of the civil statute of
24 limitations *shall* be permitted to file those claims in any court of competent jurisdiction.

25 ⁵ Senator Klitzkie also proposed that the legislature repeal those sections of Bill 34 that “served to
26 discourage counsel from undertaking the representation of child sexual abuse survivors” (id. 95-96), *i.e.*,
the certificate of merit and attorney’s fees provisions codified at 7 G.C.A. § 11306 and § 11306.1.

27 ⁶ The Substituted Bill also proposed repealing the certificate of merit and attorney’s fees provisions
28 enacted in Bill 34. Id. at 60-63.

1 Bill contained the language in subsection (a) that prospectively removed the statute of limitation
2 for actions against perpetrators and third parties (*i.e.*, the “enablers, their aiders or abettors, those
3 acting in concert with them and their institutions”), but it deleted Senator Blas’s language
4 applying the retroactive revival provision to those same third parties. The Final Bill provides:

6 (a) Any claim arising from an incident of child sexual abuse may be
7 commenced against a person, a legal entity, abusers, **their enablers, their aiders**
8 **or abettors, those acting in concert with them and their institutions** at any
9 time.

10 (b) Any claim arising from an incident of child sexual abuse that occurred
11 on Guam which has been barred by virtue of the expiration of the **previous** civil
12 statute of limitations shall be permitted to be filed in any court of competent
13 jurisdiction.

14 Id. at 5 (emphasis added).⁷

15 Accordingly, as with the final version of Bill 34 in 2011, the Final Bill in 2016 eliminated
16 the language in the Substituted Bill aimed at reviving time-barred claims against third parties.
17 The Final Bill also referenced Bill 34 in two ways. First, in the Legislative Findings and Intent
18 section of the Final Bill in 2016 (id. at 3-4) the legislature re-published the findings that
19 accompanied Bill 34 (which explicitly rejected revival of claims against third parties) but
20 explained that the Final Bill repealed the certificate of merit and attorney’s fees provisions of
21 Bill 34 that “served to discourage counsel from undertaking the representation of child sexual
22 abuse survivors” so that “child sexual abuse survivors [could] seek justice against their
23 victimizers[.]” Id. at 3-5. Second, the Final Bill added the word “previous” to subsection (b),
24 tying the scope of the claims revived by that section to Bill 34, which is the “previous” statute of
25 limitations applicable to the claims. Id. at 5.

26
27 ⁷ The language of the Final Bill was finalized through a series of floor amendments and was passed during the
28 September 12, 2016 hearing. RJN, **Ex. I** (floor amendments).

1 On September 23, 2016, the Governor signed the Final Bill into the law (Guam Pub. L.
2 No. 33-187) that is the subject of this motion, the 2016 Bill.

3 **III. ARGUMENT**

4 **A. Absent Revival, Plaintiff's Claims Against The Archdiocese Are Time-**
5 **Barred**

6 All of the claims alleged in the Lawsuits against the Archdiocese, including the decades-
7 old claims alleged by Plaintiff in this action, are time-barred under either the one- or two-year
8 statutes of limitation that were operative at various points in the previous decades.⁸ Plaintiff may
9 maintain his claims against the Archdiocese only if the 2016 Bill revived expired claims against
10 third parties. As discussed below, the 2016 Bill did not revive those claims and they should be
11 dismissed. Jones v. Bock, 549 U.S. 199, 215 (2007) ("If the allegations . . . show that relief is
12 barred by the applicable statute of limitations, the complaint is subject to dismissal for failure to
13 state a claim[.]")
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26 ⁸ Most recently, 7 G.C.A. § 11306 provided for a 2-year statute of limitation. Before § 11306, Guam law
27 provided for a one-year statute of limitation under §340(3) of the Guam Civ. P. Code. See Pedersen v.
28 U.S. of Am., 191 F. Supp. 95, 101–02 (D. Ct. Guam 1961) (discussing G.C.C.P § 340(3)). Section 340(3)
was based on §340(3) of the California Code of Civil Procedure, which also created a one-year period of
limitation. In 1980, the Guam Legislature amended §340(3) to expand the time limitation to two years
(and re-numbered the section to §339). See Guam Pub. L. No. 15-106, at 3.

1 **B. The Plain Language and Legislative History of the 2016 Bill Make Clear**
2 **That the Legislature Decided Against Attempting to Revive Lapsed Claims**
3 **Against Third Parties Such As The Archdiocese**

4 1. The Rules of Statutory Construction

5 i. *Courts Must Interpret the Language of a Statute in Context and*
6 *Give Meaning to All Words and Phrases*

7 The Guam courts “interpret statutes in light of their terms and legislative intent.” Sablan
8 v. Guam Land Use Comm’n, 2011 Guam 29, ¶ 14 (Guam 2011)⁹. “In cases involving statutory
9 construction, the plain language of a statute must be the starting point.” Bank of Guam v. Guam
10 Banking Bd., 2003 Guam 9 ¶ 19. (Guam 2003). However, “[t]he plainness or ambiguity of
11 statutory language is determined by reference to the language itself, the specific context in which
12 that language is used, and the broader context of the statute as a whole” (Sablan, 2011 Guam 9,
13 ¶ 14 (citations and quotations omitted)), which “includes looking at other provisions of the same
14 statute and other related statutes.” Macris v. Guam Mem’l Hosp. Auth., 2008 Guam 6, ¶ 19
15 (Guam 2008) (quoting Aguon v. Gutierrez, 2002 Guam 14, ¶ 9 (Guam 2002)). Crucially, courts
16 “are not at liberty to construe any statute so as to deny effect to any part of its language.” Market
17 Co. v. Hoffman, 101 U.S. 112, 115 (1879); see also Knight v. Comm’r, 552 U.S. 181, 190
18 (2008); Duncan v. Walker, 533 U.S. 167, 174 (2001) (“It is our duty to give effect, if possible, to
19 every clause and word of a statute.” (internal quotation marks omitted)). And thus, “[w]here
20 [the legislature] includes particular language in one section of a statute but omits it in another
21 [the legislature] includes particular language in one section of a statute but omits it in another
22 [the legislature] includes particular language in one section of a statute but omits it in another

23

24 ⁹ Because diversity jurisdiction is alleged, this Court should look to the law of Guam to interpret the 2016
25 Bill. Bancorp Leasing and Financial Corp. v. Agusta Aviation Corp., 813 F.2d 272, 274 (9th Cir. 1987)
26 (applying Oregon law to interpret Oregon statute of limitations and explaining that “[b]ecause our
27 jurisdiction in this case rests on diversity of citizenship, we must decide the issues presented as though we
28 were an Oregon court.”). Of course, the Guam courts readily rely on federal precedent, as well as
 precedent from the states when examining and applying the rules of statutory construction. E.g., Aguon
 v. Gutierrez, 2002 Guam 14, ¶¶ 6, 9, 13 (Guam 2002); Guam Resorts, Inc. v. G.C. Corp., 2012 Guam 13,
 ¶¶ 9, 10, 15-16 (Guam 2012).

1 section of the same [statute], it is generally presumed that [the legislature] acts intentionally and
2 purposely in the disparate inclusion or exclusion.” Guam Resorts, Inc. v. G.C. Corp., 2012
3 Guam 13, ¶16 (Guam 2012) (citing and quoting Bates v. United States, 522 U.S. 23, 29–30
4 (1997)).

5
6 ii. *Courts May Consult the Legislative History of a Bill and Should*
7 *Give Particular Weight to the Legislature’s Decision to Eliminate*
8 *Language From A Draft Bill*

9 The Guam courts also look to the statements of legislative intent as well as to legislative
10 history to determine the intent of the legislature. See, e.g., People v. Afaisen, -- Guam --, No.
11 CRA15-021, 2016 WL 7192092, at *4 (Guam Nov. 8, 2016) (“The language and legislative
12 history of the statute provide this court with guidance on determining legislative intent.”); Bank
13 of Guam, 2003 Guam 9, ¶ 32 (finding the “remarks and interpretations” by the legislature “are
14 entitled to great weight”); Jenkins v. Montallana, 2007 Guam 12, ¶ 15 (Guam 2007) (relying on
15 statement of legislative findings and intent). But not all legislative history is created equal. The
16 history of amendments to a draft bill is an important tool in determining intent. Figueroa v. Sec’y
17 of Health & Human Servs., 715 F.3d 1314, 1324 (Fed. Cir. 2013) (“In construing an enacted law,
18 the Supreme Court has often looked to the history of amendments made to the draft legislation.”)
19 (collecting cases); Meza v. Portfolio Recovery Assocs., LLC, 125 F. Supp. 3d 994, 1000 (N.D.
20 Cal. 2015), *appeal docketed*, No. 15-16900 (9th Cir. Sept. 23, 2015) (“Prior versions of a bill are
21 among the forms of legislative history that the Court may consider.”); Bellevue Fire Fighters
22 Local 1604, Int’l Ass’n of Fire Fighters, AFL-CIO, CLC v. City of Bellevue, 100 Wash. 2d 748,
23 753 (Wash. 1984) (“[W]e have acknowledged the value in appropriate circumstances of
24 considering sequential drafts of a bill.”).

1 Where, as here, the legislature eliminates language from a draft of a bill, that decision is a
2 strong indication of legislative intent. Figueroa, 715 F.3d at 1324 (deletion of language from a
3 draft “‘strongly militates against a judgment that Congress intended a result that it expressly
4 declined to enact’”) (citation omitted); Meza, 125 F. Supp. 3d at 1000 (“‘The rejection by the
5 Legislature of a specific provision contained in an act as originally introduced is most persuasive
6 to the conclusion that the act should not be construed to include the omitted provision.’”)(citation
7 omitted); Murphy v. Kenneth Cole Prods., Inc., 40 Cal. 4th 1094, 1107 (Cal. 2007) (amending
8 bill to delete penalty provisions is evidence that Senate intended to exclude provisions); Western
9 Land Office, Inc. v. Cervantes, 175 Cal. App. 3d 724, 741 (Cal. Ct. App. 1985) (interpreting a
10 statute to include a presumption “the Legislature considered including . . . but then specifically
11 abandoned . . . ‘would not be interpreting the legislative intent but would be a gross example of
12 judicial legislation in contravention of the legislative intent logically implied from the rejection
13 by the Legislature of an identical provision.’”) (citations omitted); Maria Alencastro v. The State
14 of Illinois, 54 Ill. Ct. Cl. 457, 460 (Ill. Ct. Cl. 2001) (where the legislature inserted language into
15 a final bill that “was a departure from prior legislative draftsmanship as well as from prior law” it
16 was suggestive of “an extraordinarily strong legislative intent”).

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20 *iii. The Rules of Construction Specific to Revival Laws Require That*
21 *the Legislature Expressly State its Intent to Revive Time-Barred*
22 *Claims and That any Such Revival be Construed Narrowly*

23 Under Guam law, a statutory presumption against retroactive application of statutes
24 prevails unless the legislature expressly declares otherwise in enacting a given piece of
25 legislation. 1 G.C.A. § 702 (“No part of this Code is retroactive, unless expressly so declared.”);
26 Jenkins v. Montallana, 2007 Guam 12, ¶12 (Guam 2007) (“There is a presumption against the
27 retroactive application of statutes.”) (citing Immigration & Naturalization Serv. v. St. Cyr, 533

1 U.S. 289 (2001)). The presumption against retroactivity requires that “a statute that is
2 ambiguous with respect to retroactive application is construed ... to be unambiguously
3 prospective.” Myers v. Philip Morris Companies, Inc., 28 Cal. 4th 828, 841 (Cal. 2002)
4 (citations omitted)¹⁰; see also Lindh v. Murphy, 521 U.S. 320, 328, fn. 4 (1997) (“‘retroactive’
5 effect adequately authorized by a statute” only when statutory language was “so clear that it
6 could sustain only one interpretation”). “Lapsed claims will not be considered revived without
7 express language of revival.” Quarry v. Doe I, 53 Cal. 4th 945, 957 (Cal. 2012). And, even
8 where the legislature does express an intent to revive extinguished claims, the revival statute will
9 be construed narrowly. Besser v. E.R. Squibb & Sons, Inc., 539 N.Y.S.2d 734, 738 (N.Y. 1989),
10 aff’d, 75 N.Y.2d 847 (N.Y. 1990) (“[I]t should also be noted that statutes which revive causes of
11 action previously time-barred must be narrowly construed.”) (citing Hopkins v. Lincoln Trust
12 Co., 233 N.Y. 213 (N.Y. 1922)); Saunders v. Moore, 77 Ky. 97, 98–99 (K.Y. 1878)
13 (retrospective statutes of limitation “have always been subject to such a construction as would
14 circumscribe their operation within the narrowest possible limits consistent with the manifest
15 intention of the legislature[.]”); State v. Harman, 50 S.E. 828, 831 (W. Va. 1905) (“[S]tatutes not
16 expressly made retrospective in terms are otherwise construed, if possible, and where
17 retrospective are construed as narrowly as possible.”) (citations and quotations omitted).
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¹⁰ Section 702 of the Guam Code is derived from and is substantially similar to Cal. Code. Civ. Pro § 3:
“No part of [the California Code] is retroactive, unless expressly so declared.” Thus, California case law
interpreting this provision and applying the presumption against retroactivity is persuasive. Taitano v.
Calvo Fin. Corp., 2008 Guam 12, ¶ 38 (Guam 2008), aff’d on reh’g, 2009 Guam 9 (Guam Sept. 21, 2009)

1 2. Subdivision (a) of the 2016 Bill Eliminates the Statute of Limitations for
2 Child Sexual Abuse Claims Prospectively, Not Retroactively

3 In its entirety, subsection (a) of the 2016 Bill reads: “Any claim arising from an incident
4 of child sexual abuse may be commenced against a person, a legal entity, abusers, their enablers,
5 their aiders or abettors, those acting in concert with them and their institutions at any time.” 7
6 G.C.A. § 11301.1(a). Nothing in subsection (a) constitutes express language of revival as is
7 required by both statute and case law in order to effect revival of civil claims. 1 G.C.A. § 702;
8 Quarry, 53 Cal. 4th at 957. The only temporal language in subsection (a) is that claims of child
9 sexual abuse may be commenced “at any time.” Lacking any reference to revival of lapsed
10 claims, and read in its commonsense meaning, the “at any time” language looks to the future and
11 provides that, henceforth, there shall be no limitation on the commencement of lawsuits for
12 claims that exist at present or that may come into existence in the future. But, even if the court
13 should find ambiguity in the language, the rule is that ambiguous language must be construed to
14 operate prospectively only.¹¹

15 Guidance on this point can be found in Catholic Bishop of Northern Alaska v. Does 1-6,
16 141 P.3d 719 (Alaska 2006), where the Alaska Supreme Court addressed similar language and
17 held that it did not overcome the presumption against retroactivity. At issue was an Alaska
18 statute that provided “[a] person may bring an action *at any time* for conduct” constituting
19 various types of child sexual abuse. Id. at 723 (emphasis added). Plaintiffs argued that the “at
20 any time” language “reflect[ed] a legislative choice to significantly broaden the reach of this
21 statute to revive lapsed claims.” Id. at 724. The Alaska Supreme Court disagreed, saying that

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¹¹ In the Substitute Bill, Senator Blas (based on language proposed by Robert Klitzkie) proposed a two-part structure as well: subdivision (a) was to be a prospective application and subdivision (b) a retroactive application. RJN, Ex. G at 26 (commenting on the prospective aspect of his draft language: “Prospectively, and of course statutes of limitations always extend prospectively, perhaps my language wasn’t as clear as I would have liked, but I meant prospectively without limitation, that’s what I meant.”)

1 “[h]ad the legislature intended to revive time-barred civil claims, it would have explicitly stated
2 so.” Id.; see also Guptill v. Martin, 228 F.R.D. 62, 66 (D. Me. 2005). The court also referred to
3 language in another statute where the legislature explicitly revived time-barred actions and noted
4 that “the legislature knows how to indicate when a statute is to be fully retrospective and has
5 shown its ability to do so.” Catholic Bishop of Northern Alaska, 141 P.3d at 724.
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7 That subsection (a) of the 2016 Bill is not retroactive is demonstrated by the Guam
8 legislature’s decision in subsection (b) to include explicit revival language, though on a narrower
9 basis than in the Substituted Bill proposed by Senator Blas. 7 G.C.A. § 11301.1(b) (stating that a
10 child sexual abuse claim “which has been barred by virtue of the expiration of the previous civil
11 statute of limitations shall be permitted to be filed”). Thus, the Guam Legislature “knows how to
12 indicate when a statute is to be fully retrospective and has shown its ability to do so.” Catholic
13 Bishop of Northern Alaska, 141 P.3d at 724. The legislature chose not to include any such
14 revival language in subsection (a).
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16 Interpreting subsection (a) as a revival provision would also violate a cardinal rule of
17 statutory construction that courts “are not at liberty to construe any statute so as to deny effect to
18 any part of its language.” Market Co., 101 U.S. at 115. If subsection (a) operates as a revival
19 statute, there is no need for subsection (b), which explicitly revives claims “which ha[ve] been
20 barred by virtue of the expiration of the previous civil statute of limitations[.]” Courts should
21 “not presume that the Legislature performs idle acts[.]” Krupnick v. Duke Energy Morro Bay,
22 L.L.C., 115 Cal. App. 4th 1026, 1029-30 (Cal. Ct. App. 2004) (rejecting plaintiff’s argument that
23 statutory amendment enlarging statute of limitations revived all personal injury causes of action
24 because doing so would have rendered mere surplusage another provision of the same act that
25 expressly revived causes of action for 9/11 tort victims only); see also People v. Gilbert, 1 Cal.
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3d 475, 480 583-84 (Cal. 1969) (rejecting interpretation that would have rendered one clause in a statute surplusage because such an interpretation “would clearly add nothing” to another clause in the statute). For subsection (b) to provide any remedy not already given by subsection (a), subsection (a) must be interpreted to apply prospectively, while subsection (b) must be interpreted to apply retroactively.

In sum, the plain language of subsection (a) of the 2016 Bill does not overcome the presumption against retroactivity, it does not include express language of revival and the legislative history of the 2016 Bill makes it clear that subsection (a) is prospective only.

3. The Plain Language and Legislative History of Subsection (b) Attempts to Revive Time-Barred Claims Against Perpetrators Only, Not Third Parties Such as the Archdiocese

i. *The Plain Language of Subsection (b) Does Not Apply to Third Parties*

The Court must construe the language of subsection (b) in “the broader context of the statute as a whole” (Sablan, 2011 Guam 29, ¶ 14), which includes looking to “other provisions of the same statute,” *i.e.*, subsection (a). (Macris, 2008 Guam 6, ¶ 19) (quoting Aguon, 2002 Guam 14, ¶ 9 (Guam 2002)). In determining the plain meaning of subsection (b), the Court must avoid a construction that “would render part of the statute entirely superfluous.” (Knight, 552 U.S. at 190). The only construction of subsection (b) that avoids superfluity is one that revives only claims against perpetrators by eliminating the former two-year window limitation. In subsection (a) of the Final Bill, the legislature prospectively eliminated the statute of limitations against both perpetrators and third parties, using the following litany of descriptors: “a legal entity, abusers, their enablers, their aiders or abettors, those acting in concert with them and their institutions.” Subsection (b) eliminates all references to these third parties. Interpreting

1 subsection (b) to somehow imply all of the third parties enumerated in subsection (a) would
2 render the entirety of the third-party language of subsection (a) superfluous.

3 Moreover, because the legislature “include[d] particular language” in subsection (a) “but
4 omit[ted] it” from subsection (b), the Court must presume that the legislature “act[ed]
5 intentionally and purposely in the disparate inclusion or exclusion”” and adopt a construction of
6 subsection (b) that is consistent with that intention and purpose. Guam Resorts, Inc., 2012 Guam
7 13, ¶16. In Guam Resorts, Inc., the defendant argued that the court should interpret a section of
8 a mechanics lien statute that, by its terms required a showing of willful action, to also include an
9 intent to defraud element. Id. The court refused, concluding that the legislature had included an
10 intent to defraud element in another section of the statute and that “if the legislature intended to
11 prescribe a heightened ‘intent to defraud’ standard for forfeiture of a lien under section 33302(j),
12 it could have done so explicitly, as it did in section 33401.” Id. Similarly, had the legislature
13 intended in the 2016 Bill to expand revival to third parties “it would have done so explicitly, as it
14 did in” subsection (a). Only one construction of the final draft of the 2016 Bill makes sense of
15 the legislature’s inclusion of third-party language in subsection (a) and its exclusion of that same
16 language from subsection (b): subsection (a) prospectively eliminates the limitations period for
17 actions against perpetrators and third parties alike, while subsection (b) revives actions against
18 perpetrators only.

19 Interpreting subsection (b) in this manner is also consistent with the plain language of
20 subsection (b). In describing this class of revived claims, the legislature was very specific –
21 revival applied to “any claim . . . which has been barred by virtue of the expiration of the
22 previous civil statute of limitations.” Emphasis added. Read in its ordinary sense, “the previous
23 civil statute of limitations” that “barred” claims for child sexual abuse can only mean the statute
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1 immediately preceding the 2016 Bill, i.e., Bill 34 – § 11306(b), which allowed claims only as to
2 perpetrators and even as to them, only within a two-year window. Had the legislature intended
3 to amend statutes of limitations other than Bill 34, it would have used the indefinite article, as in
4 “a civil statute” – as opposed to the definite article (coupled with the word previous), as in “the
5 previous civil statute.” See Meza, 125 F. Supp. 3d at 1001 (plain meaning of “a current
6 address”—as opposed to “the current address”—indicates that . . . more than one address that
7 would satisfy” the statutory language). Thus, the only claims that had “been barred by virtue of
8 the expiration of the previous civil statute of limitations,” and which are potentially revived by
9 subsection (b) of the 2016 Bill, are those against perpetrators which had expired by virtue of the
10 closing of the two-year window created by the previous statute of limitations, Bill 34.

13 This reading of the plain language of subsection (b) is also consistent with the legislative
14 history of the 2016 Bill. First, we know that the legislature was using Bill 34 as a guide at the
15 time that it drafted the language for the Final Bill, because it included the Legislative Findings
16 and Intent from Bill 34 in the Final Bill. Ex. H at 3-4. Second, the legislature inserted the word
17 “previous” into the 2016 Bill at the same time that it removed the language from the Substituted
18 Bill that could arguably be interpreted as an intent to revive causes of action against third parties.
19 Compare Ex. G at 60:01-60:05 (Substituted Bill purporting to revive claims barred “by virtue of
20 the expiration of the civil statute of limitations”) (emphasis added); and Ex. H at 5 (Final Bill
21 purporting to revive only those claims “barred by virtue of the expiration of the previous civil
22 statute of limitations”) (emphasis added); see also Ex. I (floor amendments for the 2016 Bill).
23 Accordingly, the timing of this language revision further indicates that the legislature
24 intentionally limited the potential application of subsection (b) to claims against perpetrators, i.e.,
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claims “barred by virtue of the expiration of the previous civil statute of limitations.” Emphasis added.

No other interpretation is consistent with the mandate to construe revival statutes narrowly. See, e.g., Besser, supra. With no express language extending revival to claims against third parties, the Court should adopt “a construction as would circumscribe [subsection (b)’s] operation within the narrowest possible limits[.]” Saunders, 77 Ky. at 98–99. The narrow construction of subsection (b) is one that limits it to the reading that is consistent with the entirety of the two subsections, the avoidance of surplusage and the overall context, *i.e.*, as an attempt to revive claims against perpetrators that had been barred by the closure of the 2-year revival window created by Bill 34.

In sum, the plain language of subsection (b), when interpreted consistently with and in the context of subsection (a), provides for no revival of claims against non-perpetrator third parties such as the Archdiocese.

ii. *The Legislative History of the Final Bill is Clear: A Decision to Eliminate Language Attempting to Revive Time-Barred Claims Against Non-Perpetrators*

As set forth in section II-B, in promulgating the final draft, the legislature deleted language from the Substituted Bill that would have revived claims against non-perpetrators. “The rejection by the Legislature of a specific provision contained in an act as originally introduced is most persuasive to the conclusion that the act should not be construed to include the omitted provision.” Meza, 125 F. Supp. 3d at 1000; Figueroa, 715 F.3d at 1324 (deletion of language from a draft of the bill “‘strongly militates against a judgment that Congress intended a result that it expressly declined to enact’”) (citation omitted).

1 In Meza, the district court interpreted California Code of Civil Procedure § 98, which
2 allowed a party to rely on written testimony at trial if the testimony was provided to the adverse
3 party, along with “a current address for the affiant” and the affiant is “available for service of
4 process at that” address. 125 F. Supp. 2d at 1001. The parties disputed whether the phrase
5 “available for service of process” required the affiant to be located and amenable to personal
6 service at the address via a subpoena. Id. In the legislative history of the statute, the Meza court
7 found that, “[a]s initially proposed, Section 98 would have permitted the use of an affidavit in
8 lieu of personal testimony at trial if . . . the affiant is subject to subpoena [sic] for the trial.” Then,
9 “[i]n the first amendment to the Assembly Bill, Section 98 was revised to remove the
10 requirement that the affiant be subject to subpoena.” Id. at 1002-3. The subpoena requirement
11 was never reintroduced and did not make its way into the final version of § 98. Id. The Meza
12 court found that it could not “interpret a statute ‘to reinsert what the Legislature intentionally
13 removed’” and thus it could not “adopt an interpretation of Section 98 that would require the
14 declarant to be subject to subpoena.” Id. at 1000-1001 (citations omitted).

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17 As with Meza, subsection (b) of Senator Blas’s Substituted Bill contained language
18 identical to subsection (a) reviving claims against “enablers their aiders or abettors, those acting
19 in concert with them and their institutions[.]” RJN, Ex. G at 60. But, the very language
20 proposed by Senator Blas to attempt revival of time-barred claims against non-perpetrators in his
21 proposed subsection (b) was deleted from the Final Bill. The Court may not interpret subsection
22 (b) “‘to reinsert what the Legislature intentionally removed.’” Meza, supra; Western Land
23 Office, Inc., 175 Cal. App. 3d at 741 (interpreting a statute to include a presumption “the
24 Legislature considered including . . . but then specifically abandoned . . . ‘would not be
25 interpreting the legislative intent but would be a gross example of judicial legislation in
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1 contravention of the legislative intent logically implied from the rejection by the Legislature of
2 an identical provision.”); Maria Alencastro, 54 Ill. Ct. Cl. At 460 (where the legislature inserted
3 language into final bill that “was a departure from prior legislative draftsmanship as well as from
4 prior law” it was suggestive of “an extraordinarily strong legislative intent”).

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6 Finally, the legislature’s statement of findings and intent indicate that it had two
7 ameliorative goals in passing the Final Bill into law in 2016, both of which sought to eliminate
8 perceived obstacles to suing perpetrators that came in under Bill 34. First, in republishing its
9 legislative findings from Bill 34, which revived claims against perpetrators only, the legislature
10 indicated that its focus was on reviving this same class of claims, but this time removing any
11 temporal restriction such as a filing “window”. RJN, Ex. H at 1-2. Second, the legislature
12 explained that it wanted to remove other requirements in Bill 34 that had deterred victims from
13 suing their abusers: it repealed the certificate of merit requirement and threat of fee-shifting. Id.
14 at 2 (stating that it was repealing the certificate of merit and attorney’s fees provisions of Bill 34
15 that “served to discourage counsel from undertaking the representation of child sexual abuse
16 survivors”). The reading of the statute urged by the Archdiocese fully serves both legislative
17 goals.
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20 **C. Interpreting the 2016 Bill to Revive Expired Claims Against the Archdiocese**
21 **Violates Pre-Existing Guam Law Prohibiting Changes to Any Accruing or**
22 **Accrued Rights**

23 The Archdiocese’s reading of the 2016 Bill is further supported by pre-existing Guam
24 law that protects the Archdiocese’s right in the long-accrued statute of limitations defense. 2
25 G.C.A. § 2105 states in relevant part: “The repeal or amendment of any statute *shall not affect*
26 *any offense committed or any act done or right accruing or accrued or any action or proceeding*
27 *had or commenced prior to such repeal or amendment[.]*” Emphasis added. Black’s Law
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1 Dictionary defines “accrued right” to mean “[a] matured right” and “a right that is ripe for
2 enforcement (as through litigation).” RIGHT, Black’s Law Dictionary (10th ed. 2014). The
3 Archdiocese’s right to assert a limitations defense before passage of the 2016 Bill meets the
4 Black’s Law definition – the limitations defense had “matured” and was “ripe for enforcement
5 (as through litigation).” Assuming arguendo that the 2016 Bill could be interpreted to revive
6 time-barred claims, it would “affect” the right of the Archdiocese, an outcome expressly barred
7 by Section 2105. Accordingly, by barring later statutes from “affect[ing]” previous rights,
8 Section 2015 converted the existing right to assert the bar of limitations into a substantive or
9 vested right and any attempt to revive expired claims violates due process.¹²

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12 Even if Section 2105 does not create substantive rights implicating due process
13 protection, it still bars retroactive revival of expired claims. By its terms, Section 2105 does not
14 confine itself to rights that are substantive, vested or special in any way. It speaks of “any” when
15 it speaks of rights -- it expressly forbids retroactive application that might “affect” any rights
16 accruing or accrued. In interpreting similar legislation in other states, federal courts have barred
17 retroactive application of new legislation that changes rights or obligations. See, e.g., In re
18 Skjetne, 213 B.R. 274, 276–77 (Bankr. D. Vt. 1997) (interpreting language in Vermont statute
19 forbidding an amendment or repeal that “affect[s] any right, privilege, obligation, or liability
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22 ¹² The due process clause of the Guam Organic Act reads: “No person shall be deprived of life, liberty, or
23 property without due process of law.” 48 U.S.C.A. § 1421b(e). Grafting the protection of Section 2105
24 onto Guam’s due process clause has an effect similar to provisions in various states’ constitutions
25 prohibiting retroactive legislation. See, e.g., Colo.Const. Art. II, Sec. 11 (constitution prohibits a law
26 “retrospective in its operation”). Courts in those states have struck down laws like the 2016 Bill that
27 attempted to revive expired statutes of limitation. See e.g., Jefferson County Dept. of Social Services v.
28 D.A.G., 199 Colo. 315, 317-18 (1980); Johnson v. Garlock, Inc., 682 So.2d 25, 27-28 (Ala.1996); Doe v.
Roman Catholic Diocese of Jefferson City, 862 S.W.2d 338, 341 (Mo. 1993); Gould v. Concord Hospital,
126 N.H. 405, 408 (1985); Baker Hughes, Inc. v. Keco R. & D., Inc., 12 S.W.3d 1, 4 (Tex.1999).

1 acquired, accrued” as prohibiting new legislation from impacting “‘any right,’ not just [] vested
2 ones”); Lillicrap v. Martin, 156 Vt. 165, 181 (1989) (Morse, J., concurring) (noting that because
3 the face of the Vermont statute refers to “any right” rather than any more limited set of vested
4 rights, “[t]he nature of that right—vested or inchoate—is not relevant. By the express terms of
5 § 214(b)(2), that right cannot be affected—and certainly not eliminated—by a later
6 [amendment][.]”). And, Guam’s presumption against retroactivity (see Jenkins, 2007 Guam 12,
7 ¶12) serves to further reinforce the directive of Section 2105 prohibiting changes that affect
8 rights. Thus, even if the Archdiocese had not yet “acquired ... immunity from this suit that has
9 become a federal constitutional right,” Chase Sec. Corp. v. Donaldson, 325 U.S. 304, 316
10 (1945), that right certainly was “accruing.” See Stogner v. California, 539 U.S. 607, 632 (2003)
11 (recognizing that “extension of even an expired *civil* limitations period can unconstitutionally
12 infringe upon a ‘vested right’”). Accordingly, whether Section 2105 constitutionalizes the right
13 to assert the limitations defense rights of the Archdiocese or simply enshrines those rights in
14 statute, the 2016 Bill may not be interpreted so as to revive expired claims against the
15 Archdiocese.

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19 **D. Interpreting the 2016 Bill to Revive Expired Claims Against the Archdiocese
20 Violates Due Process**

21 Finally, the 2016 Bill should not be interpreted to apply to third parties like the
22 Archdiocese, because that boundless interpretation of the law would violate fundamental limits
23 imposed by due process. Nearly two centuries ago, the Supreme Court stated that statutes of
24 limitation “afford security against stale demands, after the true state of the transaction may have
25 been forgotten, or be incapable of explanation, by reason of the death or removal of witnesses.”
26 Bell v. Morrison, 26 U.S. 351, 359 (1828). Indeed, “[s]tatutes of limitation ... in their
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1 conclusive effects are designed to promote justice by preventing surprises through the revival of
2 claims that have been allowed to slumber until evidence has been lost, memories have faded, and
3 witnesses have disappeared.” Order of R.R. Telegraphers v. Ry. Express Agency, 321 U.S. 342,
4 348–49 (1944). Though the Supreme Court in Chase Securities Corp. v. Donaldson held that a
5 law reviving a time-barred cause of action is not “per se an offense against” against a defendant’s
6 due process rights, 325 U.S. 304, 316 (1945), the Court recognized that such laws could violate
7 the constitution by producing “special hardships or oppressive effects” that would “result from
8 lifting the bar in [a] class of cases with retrospective force.” Id. For example, if the defendant’s
9 “conduct would have been different if the present rule had been known and the change foreseen”
10 or some “course of action [were] undertaken by [defendant] on the assumption that the old rule
11 would be continued,” due process might be violated. Id.

14 Thus, while not every retrospective law violates due process, the extension of “an expired
15 civil limitations period can unconstitutionally infringe upon a ‘vested right,’” Stogner, 539 U.S.
16 at 632, and if that limit is to apply to any law, it must apply here. The 2016 Bill, as applied to
17 alleged abusers, is limited by the life of potential defendants. But Plaintiffs’ interpretation of the
18 2016 Bill would allow claims dating back not only decades, but even centuries, to be brought
19 against institutions – long after witnesses have passed away, memories have faded, and evidence
20 has been lost. In other words, the claims can be brought after a delay “sufficiently likely either
21 to impair the accuracy of the fact-finding process or to upset settled expectations that a
22 substantive claim will be barred without respect to whether it is meritorious.” Bd. of Regents of
23 Univ. of State of N. Y. v. Tomanio, 446 U.S. 478, 487 (1980). The 2016 Bill, if allowed to
24 revive claims dating back to the 1970s and before, would be “so manipulated that [its] retroactive
25 effects would offend the Constitution.” Chase, 325 U.S. at 315-16.

1 The Court, however, need not answer this weighty constitutional question as to the
2 Archdiocese. “It is a cardinal principle of statutory interpretation” that when a law “raises a
3 serious doubt as to its constitutionality,” a court should “first ascertain whether a construction of
4 the statute is fairly possible by which the question may be avoided.” Zadvydas v. Davis, 533
5 U.S. 678, 689 (2001) (quotation marks omitted). And it is clear that reading the 2016 Bill as a
6 “revival of liability” against third parties “is troubling and raises serious due process questions.”
7 Deutsch v. Turner Corp., 324 F.3d 692, 708 (9th Cir. 2003). In contrast, the Archdiocese’s
8 reading of the 2016 Bill is persuasive, and it avoids a “multitude of constitutional problems,”
9 Clark v. Martinez, 543 U.S. 371, 380-81 (2005), that would arise under Plaintiffs’ reading. The
10 Court thus should adopt the Archdiocese’s reading of the 2016 Bill and dismiss the Archdiocese
11 from this case.
12

14 IV. CONCLUSION

15 Both as a matter of statutory interpretation and constitutional imperative, the 2016 Bill
16 did not revive expired civil claims against third parties such as the Archdiocese. Every rule of
17 statutory construction – from plain language to the legislature’s drafting decisions in eliminating
18 third-party revival language, to the avoidance of surplusage and constitutional doubts – leads to
19 only one conclusion: The 2016 Bill attempted to revive expired claims only as to alleged
20 perpetrators, not third parties. Only a strained and artificial reading of the statute leads to revival
21 of claims against third parties, and any such reading would be unconstitutional as an interference
22 with rights guaranteed by the Due Process Clause of the Guam Organic Act or, at the least,
23 would violate 2 G.C.A. § 2015. In the Lawsuits, the Archdiocese has held those rights for
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1 decades and revival of claims as to it would drastically alter its long-settled rights.

2 Accordingly, all claims against the Archdiocese must be dismissed.

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4 Dated: April 6, 2017

Respectfully submitted,

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6
7 /s/ Mary McNamara

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